

July 2, 2013



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9067
(EIGHTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See Individual Authorization Letter)
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of non-DOT specification portable tanks manifolded together within a frame and securely mounted on a truck chassis to be used for the transportation in commerce of certain Class 3 and Class 8 materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.242 in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Multi-Chem Group LLC dated September 2, 2010 submitted in accordance with 49 CFR 107.107.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Flammable liquids, n.o.s./Class 3 liquids having a vapor pressure less than 16 psia at 130EF	3	UN1993	II or III
Corrosive liquids, n.o.s./Class 8 liquids which are corrosive to skin only and which are compatible with the tank and its appurtenances	8	Various	II or III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are a group of eighty (80) gallon capacity, non-DOT specification portable tanks manifolded together within a frame, having top and bottom openings and in conformance with the following:

- (1) Each tank must be designed and constructed in accordance with WATCO Truck Rigging, Inc. drawing, Chemical Tanks, Plan, Elevation & End View, dated February 3, 1983, on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA) and conform with DOT Specification 57 in all respects except for specification marking, water capacity, and that the use of sight glasses is authorized. Each sight glass must have shut-off valves, top and bottom, and be provided with adequate protection to prevent accidental breakage. No new construction of these tanks is permitted after October 1, 1996.
- (2) Each tank manufactured after October 1, 1996, must conform with UN31A in all respects except for specification marking, water capacity, and that the use of sight glasses is authorized. Each sight glass must have shut-off valves, top and

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bottom, and be provided with adequate protection to prevent accidental breakage. After the drop test is performed as described in ' 178.810(c), a manifolded unit must also be subjected to a drop flat on a side, flat on the top, and on a corner, whichever is considered to be the most vulnerable part. The same or different container may be used for each drop.

b. TESTING -

- (1) Each tank must be visually inspected prior to each trip to insure that it has not been damaged on the previous trip.
- (2) Each non-DOT Specification portable tank must be reinspected and retested once every two and one-half years in accordance with ' 173.32(e) as prescribed for DOT Specification 57 portable tanks at a minimum pressure of 10 psig.
- (3) Each non-DOT intermediate bulk container must be reinspected and retested once every two and one-half years in accordance with ' 180.352(b) as prescribed for UN31A intermediate bulk containers except that hydrostatic testing at a minimum pressure of 10 psig must be conducted instead of leakproofness testing.

c. OPERATIONAL CONTROLS -

- (1) Each tank must be filled so as not to be liquid full at less than or equal to 130EF.
- (2) Sight glass shut-off valves must be secured during transportation.
- (3) Tanks are only authorized when manifolded together within a frame. The number of tanks within a frame may not exceed four and each tank may not exceed eighty (80) gallon capacity.
- (4) Each filling overflow line must be fitted with a shut-off valve on the top of the tank which must be secured during transportation.

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each manifolded unit must be plainly marked on both sides near the middle, in letters at least 2 inches high on a contrasting background, "DOT-SP 9067". In addition, marking and placarding requirements specified for cargo tanks in 49 CFR Part 172, Subparts D and F must be met.

d. The prototype test on this tank design may serve to qualify smaller tanks made of the same material and thickness, by the same fabrication technique, and with identical supports and equivalent closures and other appurtenances. A drawing showing the arrangement of the smaller tanks must be on file with OHMSPA prior to the first shipment.

e. A test report documenting a satisfactory prototype test for each tank design must be on file with the OHMSPA prior to the first shipment.

f. Hydrostatic test certificates for each tank must be maintained by the manufacturer or owner and made available upon request to any representative of the Department of Transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by ' 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in ' 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by ' 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CHHochman:dl